

Ganji Krishnaveni vs Pulipati Ganesh on 16 August, 2022

THE HON'BLE SRI JUSTICE A. VENKATESHWARA REDDY
Tr.C.M.P.No.156 of 2022

ORDER:

The petitioner/wife has filed this Transfer Civil Miscellaneous Petition under Section 24 of the Civil Procedure Code, 1908 (for short 'CPC') with a prayer to withdraw FCOP No.53 of 2022 pending on the file of the learned Senior Civil Judge, Nalgonda and to transfer the same to the learned Judge, Family Court, Ranga Reddy District at L.B. Nagar, to be tried along with FCOP No.1827 of 2021 and MC No.105 of 2021 pending on the file that Court.

2. Heard learned counsel for the petitioner/wife and the respondent/husband. Perused the material available on record. The submissions made on either side have received due consideration of this Court.

3. The main averments of the affidavit filed by the petitioner/wife in support of the petition are that she has filed the Tr.CMP to withdraw FCOP No.53 of 2022 filed by her husband, which is pending on the file the Senior Civil Judge, Nalgonda and to transfer the same to the Judge, AVRJ Family Court, Ranga Reddy District at L.B. Nagar where FCOP No.1827 of 2021 and MC No.105 of 2021 filed by her are pending. She further stated that she was treated as maid servant at her-in-laws' house and the respondent used to suspect her fidelity and used to ask the names of her boy friends at her place of work and finally sent her out of the house with wearing apparel. She has filed a case before the Women Police Station at Saroornagar in Crime No.263 of 2021 under Sections 498-A and 506 of the Indian Penal Code, 1860 (for short 'IPC') and under Sections 3 and 4 of the Dowry Prohibition Act, 1961. She has filed a Maintenance Case in MC No.105 of 2021 on the file of the Judge Family Court, Ranga Reddy District at L.B. Nagar. She gave a complaint under Section 12 of the Domestic Violence Act, 2005 to the Protection Officer, Vanasthalipuram, Ranga Reddy District.

3.1. In the affidavit of the petitioner, it is further averred that suppressing all the facts, the respondent has filed FCOP No.53 of 2022 on the file of the Senior Civil Judge, Nalgonda for dissolution of the marriage. It is at a distance AVRJ of more than 100 k.m. from L.B. Nagar and she has aged parents, they are unable to support her and she has no other male support, accordingly, requested for withdrawal of FCOP No.53 of 2022 filed by the husband from the file of the Senior Civil Judge, Nalgonda and to transfer the same to the learned Judge, Family Court, Ranga Reddy District at L.B. Nagar, where FCOP No.1827 of 2021 and MC No.105 of 2021 filed by her are pending.

4. The respondent/husband has filed detailed counter denying the petition averments stating that he has the responsibility to take care of his single old-aged mother, who is suffering from medical ailments and urgent medical attentions. All false allegations are made by the petitioner only for the purpose of this petition. The petitioner was in love with her colleague at the work place much before the marriage with the respondent, which is also known to her parents. A case in Crime No.180 of 2021 is also registered against the petitioner and 4 others, which is pending as CC No.1707 of 2021 on the file of the Special Mobile Court, Nalgonda. This fact is suppressed by her. She has filed all

AVRJ false cases at Ranga Reddy District including the criminal case before the Women Police Station at Rachakonda. The petitioner has got good transport facility from Hyderabad to Nalgonda and there are no merits in the petition.

5. Admittedly, the petitioner is the legally wedded wife of the respondent and she is living separately. It is also an undisputed fact that the petitioner/wife has filed FCOP No.1827 of 2021 under Section 9 of Hindu Marriage Act, 1955 for restitution of conjugal rights and has also filed MC No.105 of 2021 before the Family Court, Ranga Reddy District at L.B.Nagar. Whereas, subsequently the respondent/husband has filed FCOP No.53 of 2022 on the file of the Senior Civil Judge, Nalgonda for dissolution of marriage, he has made certain wild allegations stating that the petitioner was in love with somebody at her place of work and that he has also filed a criminal case in Crime No.180 of 2021 of P.S. Chandur, Nalgonda District and that on completion of investigation, it is registered as CC No.1707 of 2021 pending on the file of the Special Mobile Magistrate's Court at Nalgonda.

AVRJ

6. Be that as it may, for the purpose of Section 24 of CPC, this Court is required to look into whether there are any grounds for withdrawal of pending FCOP on the file of the Senior Civil Judge, Nalgonda and to transfer the same to the Judge, Family Court, Ranga Reddy District at L.B. Nagar.

7. Under Section 19 (iii)(a) of Hindu Marriage Act, wife is entitled to prosecute the matrimonial disputes before the jurisdictional Court wherever she is living after separation with her husband.

8. Admittedly, the petitioner/wife is living within the limits of Saroornagar of Ranga Reddy District. The cardinal principle for exercise of power under Section 24 of CPC is that ends of justice would demand the transfer of the suit, appeal or other proceedings.

9. The learned counsel for the petitioner/wife relied on the principles laid in N.C.V. Aishwarya v. A.S. Saravana Karthik Sha¹ wherein the Apex Court while dealing with 2022 Law Suit (SC) 862 AVRJ the transfer petition in a matrimonial dispute held that in matrimonial matters wherever Courts are called upon to consider the plea of transfer, they have to take into consideration the economic soundness of both the parties, social strata of the spouses, their behavioural pattern, their standard of life prior to the marriage and subsequent to the marriage and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to live. It is further held that generally it is the wife's convenience which must be looked into while considering such applications.

10. The Hon'ble Supreme Court of India in Rajani Kishor Pardeshi v. Kishor Babulal Pardeshi² while dealing with transfer proceedings of a matrimonial dispute, held that in this type of matters, the convenience of the wife is to be preferred over the convenience of the husband.

11. Reverting back to the facts of the present case, the petitioner/wife is residing in the limits of L.B. Nagar, (2005) 12 SCC 237 AVRJ Ranga Reddy District. She has initially filed a restitution of

conjugal rights FCOP No.1827 of 2021 and the Maintenance Case in MC No.105 of 2021 pending on the file of the Family Court, Ranga Reddy District at L.B. Nagar. She has also filed a criminal case against the respondent before the Women Police Station, Saroornagar. It is not the case of the respondent that either the petitioner is gainfully employed or that he has been paying maintenance to her. Subsequently, the respondent has filed FCOP No.53 of 2022 before the Senior Civil Judge at Nalgonda. It is also alleged by him that she has filed a criminal case against the respondent herein and 4 others and it is registered, vide CC No.1707 of 2021 pending on the file of Special Mobile Court at Nalgonda.

12. Therefore, considering the facts and circumstances of the case, scheme of Hindu Marriage Act, principles laid by the Apex Court in the above decision, I find justification in the request of the petitioner/wife and she is entitled for withdrawal of FCOP No.53 of 2022 pending on the file of the Senior Civil Judge, Nalgonda and for transfer of the AVRJ same to the learned Judge, Family Court, Ranga Reddy District to be tried along with FCOP No.1827 of 2021 and MC No.105 of 2021 filed by her pending on the file of that Court.

13. In the result, the Transfer Civil Miscellaneous Petition is allowed. FCOP No.53 of 2022 pending on the file of the learned Senior Civil Judge, Nalgonda is ordered to be withdrawn and transferred to the file of the Judge, Family Court at Ranga Reddy District at L.B.Nagar to be tried along with FCOP No.1827 of 2021 and MC No.105 of 2021 pending on the file of that Court. The learned Senior Civil Judge, Nalgonda shall transmit the entire record in FCOP No.53 of 2022 duly indexed, within one month from the date of receipt of a copy of this order. However, there shall be no order as to costs.

As a sequel, interlocutory applications, if any pending in this Tr.CMP shall stand closed.

_____ A. VENKATESHWARA REDDY, J.

Date: 16.08.2022 Isn